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[20 & 21 GEO. 5.] *Falmouth Corporation*
Water Act, 1930.

[Ch. clxxi.]



CHAPTER clxxi.

An Act to provide for the transfer of the under- A.D. 1930.
 taking and powers of the Falmouth Waterworks
 Company to the mayor aldermen and burgesses
 of the borough of Falmouth to authorise the
 said mayor aldermen and burgesses to supply
 water in and in the neighbourhood of their
 borough and for other purposes.

[1st August 1930.]

WHEREAS the borough of Falmouth (in this Act
 called "the borough") in the county of Cornwall
 is under the management and local government of the
 mayor aldermen and burgesses thereof (in this Act
 called "the Corporation"):

And whereas under and by virtue of the Falmouth
 Water Acts 1862 to 1930 the Falmouth Waterworks
 Company (in this Act called "the Company") have
 constructed waterworks and are supplying water within
 an area comprising the borough the borough of Penryn
 and the parishes of Budock Rural Mylor and St. Gluvias
 in the rural district of East Kerrier:

And whereas the Company have agreed with the
 Corporation for the transfer of their undertaking to the
 Corporation and it is expedient that the said undertaking
 should be transferred to and vested in the Corporation
 in manner provided by this Act and that the agreement
 a copy of which is set forth in the First Schedule to this
 Act should subject to the provisions of this Act be
 confirmed and made binding on the parties thereto:

[Price 2s. Net.]

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— And whereas it is expedient to confer further powers upon the Corporation in relation to the supply of water and to make further provision in reference to their water undertaking :

And whereas it is expedient to make further provision with regard to the finances of the Corporation :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Falmouth Corporation Water Act 1930.

Division
of Act
into Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Acquisition of water undertaking.

Part III.—Waterworks and lands.

Part IV.—Supply of water.

Part V.—Financial and miscellaneous.

Incorpora-
tion of
general
Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (namely) :—

(1) The Lands Clauses Acts with the following exception and modification :—

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act ;

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(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section; A.D. 1930.

(2) The Waterworks Clauses Act 1847 except—

(a) The words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44;

(b) Sections 75 to 82 (with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit); and

(c) Section 83 (with respect to the yearly receipt and expenditure of the undertakers); and

(3) The Waterworks Clauses Act 1863.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts 1875 to 1925 have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

(2) In this Act unless the subject or context otherwise requires—

“The borough” means the borough of Falmouth;

“The Corporation” means the mayor aldermen and burgesses of the borough;

“The council” means the council of the borough;

“The mayor” “the town clerk” and “the treasurer” mean respectively the mayor the town clerk and the treasurer of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“The general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the borough;

“The Company” means the Falmouth Waterworks Company;

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“ The scheduled agreement ” means the agreement dated the nineteenth day of May one thousand nine hundred and thirty and made between the Company of the one part and the Corporation of the other part and set out in the First Schedule to this Act ;

“ The day of transfer ” means the first day of January nineteen hundred and thirty-one ;

“ The undertaking of the Company ” includes—

(a) All the lands buildings waterworks machinery mains pipes plant and apparatus contracts plans specifications engineering reports books accounts papers and other documents stores and other property of the Company on the day of transfer ;

(b) All bank balances and cash and other balances (including consumers' deposits) in the hands of the Company or in the hands of their bankers agents or servants on the day of transfer and securities for money except so much of such balances cash and securities as may be necessary for enabling the Company to pay the dividends which they are entitled to pay under clause 7 of the scheduled agreement ;

(c) All rates rents book-debts and other sums of money which on the day of transfer are due or payable to or have accrued due to the Company ;

(d) All rights powers and privileges vested in or had and enjoyed by the Company at the day of transfer ;

(e) All debts and liabilities of the Company as existing on the day of transfer ;

but does not include the directors' minute books and other books and papers relating exclusively to the stockholders and members of the Company ;

“ The Penryn Corporation ” means the mayor aldermen and burgesses of the borough of Penryn ;

“ The water undertaking ” means the water undertaking of the Corporation ;

“ The Minister ” means the Minister of Health ;

“The water limits” means the limits within which the Corporation are for the time being authorised to supply water; A.D. 1930.

“The Lands Clauses Acts” means (except in the section of this Act of which the marginal note is “Sale of portion of undertaking to Penryn Corporation”) the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation;

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“Telegraphic line” has the same meaning as in the Telegraph Act 1878;

“The Company’s Acts” means the Falmouth Water Acts 1862 to 1930;

“The Act of 1928” and “the Act of 1930” mean respectively the Falmouth Water Act 1928 and the Falmouth Water Act 1930.

Commence-
ment of
Parts III
and IV
of Act.

5. The Corporation shall not exercise the powers conferred upon them by Part III (Waterworks and lands) and Part IV (Supply of water) of this Act until the day of transfer.

PART II.

ACQUISITION OF WATER UNDERTAKING.

Confirma-
tion of
scheduled
agreement.

6.—(1) The scheduled agreement is hereby confirmed and made binding upon the Corporation and the Company and effect may and shall be given thereto accordingly subject to such modifications (if any) as may be agreed between the Corporation and the Company in writing under their respective common seals. Provided that no such modification shall have the effect of extending the period within which stock created under the section of this Act of which the marginal note is “Creation of stock for purposes of Act” is required by that section to be redeemed or shall be of such a character as to affect the rights or interests of any persons other than the Corporation and the Company.

(2) The sale of the undertaking of the Company shall be carried into effect on or as from the day of transfer by a deed which may be in the form set forth in the Second Schedule to this Act or to the like effect or in such other form as may be agreed between the Company and the Corporation and on the execution of the deed by the Company the undertaking of the Company shall by virtue of the deed and this Act be transferred to and become vested in the Corporation and such transfer and vesting are referred to in this Act as “the transfer.”

(3) The Company shall on the first day of November nineteen hundred and thirty deliver to the Corporation complete lists of the holders of ordinary preference

and four per centum debenture stocks of the Company on that date with their addresses and descriptions and of the holdings of such holders on that date and the registered certificates of the Falmouth Corporation five per centum stock 1950-1975 to be issued to those holders shall be made out by the Corporation in the names of the holders of ordinary preference and four per centum debenture stocks of the Company as shown upon such lists in respect of the several amounts of stock of the Corporation to which they are respectively entitled under clause 5 of the scheduled agreement and shall be delivered by the Corporation to the Company. A.D. 1930.
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(4) The register of transfers of the Company shall be closed from the first day of November nineteen hundred and thirty until the day of transfer.

7.—(1) The five per centum debenture stock of the Company outstanding at the day of transfer and the interest accruing thereon after that day shall thereafter be a charge on the revenues of the Corporation and shall rank *pari passu* with the stock to be created under the section of this Act of which the marginal note is "Creation of stock for purposes of Act" and the Corporation shall indemnify and hold harmless the Company against any claims in respect thereof. As to Company's debenture stock.

(2) (a) The Corporation may by agreement with the holder of any portion of the said five per centum debenture stock of the Company at any time substitute for the stock so held by him any stock mortgage or other security of the Corporation (charged on the revenues of the Corporation) or pay off the amount secured by such debenture stock and redeem the security with moneys raised under the powers of this Act and the holder of any such debenture stock whether or not he is a trustee or under any disability may agree with the Corporation to accept any stock mortgage or other security of the Corporation in lieu of money in consideration for his debenture stock.

(b) In any such case the Corporation may make such reasonable payment as they may think fit to the holder of any such debenture stock for his consent or for otherwise compensating him for the substitution or the payment off or redemption of his security and

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Substituted securities to be held in same rights.

8.—(1) Any stock of the Corporation issued to the holders of ordinary preference or four per centum debenture stock of the Company in pursuance of the scheduled agreement and any sums of money paid to the Company or the said stockholders and any stock mortgage or other security substituted for any five per centum debenture stock of the Company in pursuance of this Act shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in on or subject to which the said stocks of the Company were respectively held immediately before the day of transfer or such substitution (as the case may be) and so as to give effect to and not to revoke any deed will or other instrument or testamentary or other disposition disposing of or affecting the stock and every such deed will instrument or disposition shall take effect with reference to the whole or a proportionate part (as the case may be) of the stock of the Corporation sum of money or substituted security.

(2) Any bequest of or any covenant or provision of any deed will or other instrument relating to any specific or nominal amount of ordinary preference or four per centum debenture stock of the Company shall be held to apply to the amount of stock of the Corporation and sum of money (if any) which under the scheduled agreement is to be issued or paid in substitution for such specific or nominal amount of stock in the capital of the Company.

(3) Trustees executors and administrators and all other holders in any representative or fiduciary capacity and persons under disability are hereby authorised to accept the stock of the Corporation so issued to them and sums of money (if any) so paid to them in pursuance of the provisions of this Act for the ordinary preference and four per centum debenture stocks of the Company held by them and may hold dispose of or otherwise deal with such stock of the Corporation and sums of money in all respects as they might have held disposed of or otherwise dealt with the ordinary preference and four per centum debenture stocks of

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the Company for which the same are substituted and A.D. 1930.
are hereby indemnified in respect of all acts bona fide
done by them in pursuance of the provisions of this
Act. —

9. The Corporation before the day of transfer and Inspection
thereafter the Company their solicitors and agents shall of books &c.
be entitled to have access to and to take copies of all
documents to be handed over or handed over to the Cor-
poration so far as the same may be necessary for the
purposes of enabling the Corporation or the Company
to execute any of the provisions of this Act and the
Corporation shall also be entitled at any time and for the
like purpose to have access to and to take copies of all
documents to be retained by the Company.

10. The receipt in writing of three directors of the Receipt for
Company for any money or stock or other security of purchase
the Corporation paid or delivered to the Company or money.
for any sum of money payable by the Corporation to the
directors of the Company or to any other person under
the scheduled agreement shall effectually discharge
the Corporation from the sum stock or other security
which in such receipt shall be acknowledged to have been
received and from being bound to see to the application
thereof and from being answerable or accountable for the
loss misapplication or non-application thereof and if from
any cause the Corporation are unable to obtain any such
receipt from the directors of the Company they may pay
the money or deliver the certificate or certificates for
the stock or other security into the Bank of England
in the name of the Accountant-General for and on behalf
of the Supreme Court to an account to be opened in the
matter of this Act and a receipt shall be given to the
Corporation by the cashier of the said bank for the money
stock or other security which shall have the same effect
as the receipt of three directors of the Company.

11.—(1) Until the day of transfer the Company Exercise
shall maintain and carry on their undertaking as hereto- of Com-
fore in the ordinary course of business maintaining (as pany's
far as is reasonably practicable) normal quantities of powers until
consumable stores but the Company shall not without transfer.
the previous consent of the Corporation under the hand
of the town clerk make or enter into any new contract
agreement liability or other obligation in respect thereof
which shall extend beyond the day of transfer nor vary

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A.D. 1930. — any of the rates rents or charges which were being demanded and taken by the Company on the first day of January nineteen hundred and thirty.

(2) Provided that the Company shall not after the passing of this Act issue any debenture stock or raise any additional capital except with the consent in writing of the Corporation.

Corpora-
tion to pay
debts and
to be
entitled to
rents after
transfer.

12. The Corporation shall pay and discharge (so far as the same shall not have been previously discharged by the Company) the debts outgoings and liabilities properly chargeable against the Company and shall on and after the day of transfer indemnify the Company from all claims in respect thereof and shall be entitled to all rates rents profits and other receipts receivable in respect of the undertaking of the Company.

Actions &c.
not to
abate and
penalties
to be re-
coverable.

13.—(1) Subject as between the Corporation and the Company to the provisions of the scheduled agreement and without prejudice to any remedy over by the Corporation against the Company no action suit prosecution or other proceeding whatsoever commenced either by or against the Company in relation to any property right privilege debt liability or obligation transferred to the Corporation shall abate or be discontinued or prejudicially affected by reason of the transfer but the same shall continue and take effect either in favour of or against the Corporation in the same manner in all respects as the same would have continued and taken effect in relation to the Company if the transfer had not been made and all penalties incurred by reason of any offence against any of the provisions of the Company's Acts previously to the day of transfer may be sued for and all offences committed against such provisions previously to the day of transfer may be prosecuted by the Corporation in such or the like manner to all intents and purposes as such penalties might have been sued for or such offences prosecuted if the transfer had not taken place and all moneys payable to the Company prior to the day of transfer may be sued for and recovered by the Corporation in the same manner in all respects as the same might have been sued for and recovered by the Company if this Act had not been passed.

(2) This section shall not apply to any proceedings relating to the amount due to the stockholders of the

Company in respect of their several shares in the capital of the Company and the dividends accrued due thereon up to the day of transfer. A.D. 1930.
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14. Subject to the provisions of the scheduled agreement all agreements conveyances contracts deeds and other instruments entered into or made with or by the Company and in force at the day of transfer shall be as binding and of as full force and effect in every respect against or in favour of the Corporation and may be enforced as fully and effectually as if instead of the Company the Corporation had been a party thereto. Contracts with Company to be binding on Corporation.

15. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the Company shall be admitted in evidence in respect of the same or the like matter for or against the Corporation. Books &c. to remain evidence.

16. The provisions contained in the Third Schedule to this Act with respect to the winding up and the dissolution of the Company shall have effect. Winding up and dissolution of Company.

17.—(1) The Company's Acts shall as from the day of transfer be repealed except so far as may be necessary to give effect to the provisions of the section of this Act whereof the marginal note is "Winding up and dissolution of Company" and except the following provisions of those Acts (namely):— Partial repeal of Company's Acts.

The Falmouth Waterworks Act 1862—

Section 38 (Power for Company to make new works and take lands for the purpose);

Section 39 (Enabling the making of grants of lands and hereditaments on the part of the duchy of Cornwall);

Section 41 (Pipe to be laid down as approved by the Admiralty);

Section 42 (Admiralty may order a local survey at expense of Company);

Section 43 (Works affecting tidal waters abandoned may be removed by Admiralty at expense of Company);

Section 51 (Provisions for the protection of mill-owners on College River).

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The Falmouth Waterworks Act 1891—

Section 2 (Acquisition of mills &c.);

Section 3 (Sale or disposal of mills).

The Act of 1928—

Section 4 (Power to make works);

Section 5 (Limits of deviation);

Section 6 (Period for completion of new works);

Section 7 (Power to take waters);

Section 9 (Additional lands for access &c.);

Section 10 (Power to acquire easements);

Section 11 (Persons under disability may grant easements &c.);

Section 12 (Period for compulsory purchase of lands);

Section 18 (Pressure of supply);

Section 29 (For protection of local authorities);

Section 30 (For protection of Great Western Railway Company).

The Act of 1930—

Section 3 (Interpretation);

Section 4 (Power to construct new works);

Section 5 (Subsidiary works);

Section 6 (Limits of deviation);

Section 7 (Period for completion of works);

Section 8 (Power to take waters);

Section 9 (Power to take lands);

Section 10 (Period for compulsory purchase of lands);

Section 12 (Application of sections of Act of 1928 relating to lands) (except so much thereof as relates to section 15 of the Act of 1928);

Section 14 (Stopping up of roads and footpaths);

Section 15 (Extinction of private rights of way);

Section 16 (Entry on property for survey and valuation);

Section 17 (Compensation in case of recently altered buildings &c.);

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Section 19 (For protection of Ecclesiastical Com- A.D. 1930.
missioners);

Section 20 (For protection of Elizabeth
Tremayne);

Section 21 (For protection of William Charles
Midlen):

Provided that notwithstanding such repeal all arrears of rates rents and charges payable under the provisions of the said Acts and all rates rents and charges payable thereunder in respect of any period before the day of transfer may be collected and recovered as if this Act had not been passed.

(2) The Corporation shall have the powers and rights and be subject to the obligations of the provisions which are referred to in subsection (1) of this section as if the Corporation were named in those provisions instead of the Company.

18.—(1) If within the period of one year after the passing of this Act the Penryn Corporation shall give notice in writing to the Corporation of their desire to purchase such portion of the water undertaking as is contained within the borough of Penryn (except any pumping stations and reservoirs and except any aqueducts mains pipes or other works or apparatus which shall be necessary for supplying with water any area not comprised within the borough of Penryn) and shall within that period obtain the consent of the Minister to such purchase the Corporation shall sell and the Penryn Corporation shall within the period of two years after the passing of this Act purchase the portion of the water undertaking (except as aforesaid) within the borough of Penryn at such price and upon and subject to such terms and conditions as may be agreed upon between the Corporation and the Penryn Corporation or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression "the promoters of the undertaking" shall mean the Penryn Corporation and the expression "lands" shall mean the portion of the water undertaking to be purchased In any such arbitration regard shall be had to any claim of the Corporation in

Sale of
portion of
under-
taking to
Penryn
Corpora-
tion.

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(2) Any such purchase shall be deemed to be a purpose of the Public Health Act 1875.

(3) The Corporation shall apply the proceeds of any sale under this section in the same manner as they are required to apply money received from the sale of land under this Act.

(4) After the completion of such purchase all obligations on the part of the Corporation to supply water within or for use within the borough of Penryn shall cease and determine but the Corporation shall retain their powers in regard to the repair maintenance renewal and use of any works mains pipes and apparatus not comprised in the sale and the laying down of mains and the execution of works for the purpose of supplying water to areas not comprised within the borough of Penryn.

PART III.

WATERWORKS AND LANDS.

Power to
maintain
&c. existing
water-
works.

19.—(1) Subject to the provisions of this Act the Corporation may maintain and repair and from time to time alter improve enlarge deepen extend and renew or discontinue the waterworks vested in or belonging to them or authorised to be constructed by virtue of this Act and may use and employ the same for the purpose of taking intercepting pumping and impounding water and may take intercept pump and impound any waters which can be taken intercepted pumped or impounded by such waterworks and may from time to time extend the works vested in them by this Act and may use those works and pipes for the supply of and may sell and supply water within the water limits under the provisions of this Act and the Corporation shall in respect of those works and pipes and the maintenance and future use regulation and enlargement thereof have the powers and be subject to the provisions of this Act and the Acts incorporated wholly or in part with this Act so far as the same relate

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to the water undertaking and the same shall be deemed to be and shall be and form part of the water undertaking. A.D. 1930.
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(2) In addition to the works referred to in subsection (1) of this section the Corporation may upon the lands comprised in the undertaking of the Company make and maintain all such buildings machinery works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the said works or any of them but nothing in this subsection shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them :

Provided that any electrical apparatus shall be so made maintained and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

20. The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads of any discharge pipes telephone or telegraph posts wires conductors or apparatus which the Corporation may erect or lay down for the purposes of the water undertaking : Application of Water-works Clauses Act 1847.

Provided that any telephone or telegraph posts wires conductors or apparatus constructed laid down erected or maintained under the provisions of this section shall not be used for the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869 and shall be so constructed maintained and used as to prevent any interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

21.—(1) For the purpose of executing constructing enlarging extending repairing cleansing emptying or examining any reservoir conduit line of pipes or other work of the Corporation the Corporation may cause the water in any such work to be discharged into any available stream ditch or watercourse Provided that any water so discharged shall so far as may be reasonably practicable be free from mud solid or offensive matter and other Discharge of water into streams.

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A.D. 1930. matter injurious to fish or spawn or spawning beds or
— food of fish.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration in accordance with the provisions of the Arbitration Act 1889.

(3) The rate at which the Corporation may cause water to be discharged directly or indirectly into any available stream ditch or watercourse shall not (except in emergency) exceed such a rate as may be agreed between the Corporation and the local authority in whose district the stream ditch or watercourse is situate or as failing agreement may be determined by arbitration under and pursuant to the provisions of the Arbitration Act 1889 to be reasonable having regard to all the circumstances of the case :

Provided that the local authority shall for the purpose of this section be deemed to include (in addition to any other person) the Cornwall County Council in respect of any stream ditch or watercourse draining or adjacent to a county road under the control of that county council.

(4) The powers of this section shall not be exercised so as to damage or injuriously affect the railways or works of the Great Western Railway Company.

Power to
hold lands
and exercise
powers for
protection
of waters.

22.—(1) For the purpose of protecting against pollution nuisance encroachment or injury any of the waters which the Corporation are empowered to take the Corporation may by agreement purchase take on lease or otherwise acquire any lands easements or rights and may hold such lands and any other lands which the Corporation may have acquired for the purposes of the water undertaking so long as they shall deem it necessary or expedient for those purposes :

Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any lands acquired under this section nor without the approval of the Minister erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident

to or connected with the water undertaking but the restrictions of this section as to the erection of buildings shall not apply in respect of lands leased or sold by the Corporation. A.D. 1930.

(2) The Corporation may in and upon the lands referred to in subsection (1) of this section construct and lay down drains sewers watercourses catchpits and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Corporation are empowered to take from being polluted and the Corporation may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

(3) The Corporation may make and carry into effect agreements with the owners lessees or occupiers of any lands with reference to the execution by the Corporation or by such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters which the Corporation are for the time being authorised to take.

23. The Corporation on selling any lands acquired by them in connection with the water undertaking and not required for the purposes of that undertaking may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit. Reserva-
tion of
water
rights &c.
on sale.

24. The Corporation shall have and may exercise the powers which a local authority would have under section 54 (Power of carrying mains) of the Public Health Act 1875 with respect to the carrying of water mains within and without their district and for the purposes of that section the water limits shall be deemed to be the district of the Corporation : Further
powers in
relation to
water
mains.

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Provided that the Corporation shall not exercise the powers of this section under any lands or property belonging to the Great Western Railway Company without the previous consent in writing of such company which consent shall not be unreasonably withheld.

Meters in streets to measure water or detect waste.

25. Subject to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the Corporation may for the purpose of measuring the quantity of water supplied or of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Corporation and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets sewers gas air or water pipes electric lines wires and apparatus :

Provided that the Corporation shall not interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Power to lay pipes in private streets.

26. The Corporation may on the application of the owner or occupier of any premises within the water limits abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall apply as if section 29 (Undertakers not to enter on private land without consent) of that Act were excepted from incorporation with this Act.

Power to purchase additional lands by agreement.

27.—(1) Subject to the provisions of this Act the Corporation in addition to any other lands acquired or held by them in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of the water undertaking but (except with the consent of the Minister) the quantity of lands held by the Corporation in pursuance of this section shall not at any time exceed ten acres.

(2) The Corporation may on all or any of such additional lands and also on all or any of the lands for

[20 & 21 GEO. 5.] *Falmouth Corporation* [Ch. clxxi.]
Water Act, 1930.

the time being held by them under the powers of this Act execute for the purposes of or in connection with the water undertaking any of the works (other than wells and works for taking or intercepting water) and exercise any of the powers mentioned in or conferred by section 12 (Undertakers subject to provisions of this and the special Act may execute the works herein named) of the Waterworks Clauses Act 1847. A.D. 1930.

(3) Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incidental to or connected with the water undertaking but the restrictions of this section shall not apply in respect of lands leased or sold by the Corporation.

28.—(1) Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any other local Act for the time being in force in the borough and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange. Power to retain sell &c. lands.

(2) The Corporation shall not (unless the Minister otherwise direct) sell lease exchange or otherwise dispose of any of the lands to which this section applies except at the best price or on the best terms which can be obtained for the same but a purchaser or lessee shall not be concerned to inquire whether the direction of the Minister is necessary or has been obtained.

(3) Nothing in this section shall be taken to dispense with the necessity for obtaining the consent of any

A.D. 1930. — Government department to any sale lease appropriation or other disposition of any lands of the Corporation in any case in which such consent would have been required if this Act had not been passed.

(4) Nothing in this section contained shall release the Corporation or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

Proceeds
of sale of
surplus
lands.

29.—(1) So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this or any other Act and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister.

(2) Provided that—

- (a) the amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by or under this Act for the purpose of such purchase;
- (b) the borrowing powers conferred by or under this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

30. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in or over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

A.D. 1930.

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Persons
under
disability
may grant
easements
&c.

31. The Corporation may purchase or take on lease and maintain houses and buildings for persons in their employment in connection with the water undertaking and the Corporation may also erect maintain and let any such buildings upon any land for the time being belonging or leased to the Corporation for those purposes.

Dwelling-
houses for
employees
and other
buildings.

32. The Corporation shall not under the powers of this Act construct on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Corporation shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Corporation and the amount of such costs and charges shall be a debt due from the Corporation to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt.

Works
below
high-water
mark not
to be con-
structed
without
consent of
Board of
Trade.

A.D. 1930.

PART IV.

SUPPLY OF WATER.

Limits of
supply.

33. The limits within which the Corporation may supply water under the powers of this Act are—

- (a) The borough;
- (b) The borough of Penryn;
- (c) The parishes of Budock Rural Mylor and St. Gluvias in the rural district of East Kerrier.

Amend-
ment of
section 35
of Water-
works
Clauses
Act 1847.

34. The provisions of section 35 of the Water-works Clauses Act 1847 shall in their application to the Corporation be read and construed as if the one-tenth part of the expense of providing and laying down pipes mentioned in that section were one-eighth part of such expense.

Guarantees
by local
authorities.

35.—(1) A local authority any part of whose district is within the water limits may give and enter into any guarantee or contract for securing payment to the Corporation of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such local authority and the Corporation for the purpose of or with respect to the providing or laying down by the Corporation of any main pipe or works for the supply of water within any part of such district which is within the water limits.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such local authority they may incur expenditure and any such local authority may raise any money which may become payable to the Corporation under this section in like manner as money may be raised under the provisions of any such general Act.

(3) Provided that where such money is raised by a rural district council by means of a rate such rate shall be or shall be deemed to be a special rate but the provisions of this subsection shall not affect the operation of section 56 of the Local Government Act 1929.

[20 & 21 GEO. 5.] *Falmouth Corporation* [Ch. clxxi.]
Water Act, 1930.

36.—(1) The Corporation shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at a rate per annum not exceeding (i) until the twenty-fifth day of March nineteen hundred and thirty-one the rate of eleven per centum on the net annual value of the house or part of a house supplied and (ii) after the last-mentioned date the rate of fifteen per centum on such net annual value. Provided that the Corporation shall not be required to afford a supply of water for domestic purposes to any premises at a less rate than fourpence per week.

A.D. 1930.

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Rates for
domestic
purposes.

(2) The net annual value of any such house or part of a house as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues :

Provided that where the water rate is chargeable on the net annual value of a part only of any hereditament entered in the valuation list such net annual value shall be a fairly apportioned part of the net annual value of the whole hereditament ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

(3) In addition to the foregoing rates the Corporation may charge in respect of every watercloset beyond the first (for which no additional charge shall be made) on any premises supplied with water a sum not exceeding ten shillings per annum and in respect of every fixed bath capable of containing not more than fifty gallons and of every bath having an emptying aperture and capable of containing more than twenty gallons but not more than fifty gallons a sum not exceeding ten shillings per annum and in respect of every bath capable of containing more than fifty gallons such sum as the Corporation may think fit. Provided that the additional sum to be charged in respect of any bath fixed in any premises before the passing of this Act and capable of containing fifty gallons but not more than seventy-five gallons shall while it remains in those premises not exceed ten shillings per annum. The additional sums which may

[Ch. clxxi.] *Falmouth Corporation* [20 & 21 GEO. 5.]
Water Act, 1930.

A.D. 1930. be charged under this subsection shall be paid quarterly
— in advance and be recoverable in all respects with and
in the same manner as the water rate.

Rates
payable
by owners
of small
houses.

37.—(1) Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Corporation so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

(2) Nothing in this section shall limit or affect the operation of section 72 (Owners of houses not exceeding ten pounds rent to be liable to water rates) of the Waterworks Clauses Act 1847.

Supply by
meter.

38.—(1) Subject to the provisions of this Act the Corporation may supply water for other than domestic purposes on such terms and conditions as the Corporation think fit and may supply water by meter either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates.

(2) Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Charges
for hose-
pipes and
refrigerat-
ing ap-
paratus.

39.—(1) Where water supplied for domestic purposes is used for horses or for washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Corporation may if a hosepipe or other similar apparatus is used charge (except where the water so used is taken by meter) such sum not exceeding twenty shillings per annum as they may prescribe and (where more motor cars than one are kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first Any sums chargeable under this

subsection shall be in addition to the rates for the time being authorised by or under this Act for the supply of water for domestic purposes and shall be paid and recoverable in all respects with and in the same manner as the said rates. A.D. 1930.

(2) Where water supplied by the Corporation to a person who takes a supply both for domestic purposes and by meter for trade or other purposes is used by him by means of a hosepipe or other similar apparatus for horses or for washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Corporation may if they think fit require that all water so used by means of any such hosepipe or other apparatus shall be taken by meter and paid for at the rates for the time being in force for the supply of water by meter.

(3) Where a person who takes a supply of water from the Corporation for any purpose desires to use for or in connection with a refrigerating apparatus any of the water so supplied the Corporation may if they think fit require that all water used for or in connection with the said apparatus shall—

- (i) be taken by meter on the conditions and at the rates for the time being in force for the supply of water by meter; or
- (ii) be paid for on such other terms as may be agreed between such person and the Corporation :

Provided that if the person is only taking a supply of water from the Corporation for domestic purposes the minimum sum per quarter which may be demanded by the Corporation for the water used for or in connection with the refrigerating apparatus if taken by meter shall not exceed ten shillings.

40.—(1) Notwithstanding anything in any Act relating to the Corporation a person shall not be entitled to demand or continue to receive from the Corporation a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the Corporation to take a supply of water by meter and to pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by

Special
terms for
supplies to
caravans
shacks &c.

A.D. 1930. — them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him and unless he has secured to the reasonable satisfaction of the Corporation by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of the court shall be final and binding on all parties.

(3) Notwithstanding anything in this section or any other provisions of or incorporated with this Act the Corporation shall not (unless required so to do by the Minister) supply water to any caravan shack hut tent or other like structure if the local authority for the district in which the structure is situated objects to the supply being given.

Supply to
houses
partly
used for
trade &c.

41.—(1) The Corporation shall not be bound to supply with water otherwise than by measure—

- (a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required; or
- (b) any workhouse hospital (whether public or private) asylum (whether public or private) sanatorium club hotel public-house restaurant inn or common lodging-house; or
- (c) any boarding-house or public institution habitually occupied by at least twelve persons.

(2) The amount to be paid under the provisions of this section exclusive of meter rent shall not in any one quarter be less than the sum which would have been payable in respect of such premises had the supply thereto been furnished at the rate for the time being payable for water supplied for domestic purposes.

Price of
water for
public
purposes.

42. The price to be charged by the Corporation for a supply of water to any local authority for the purposes mentioned in section 37 of the Waterworks Clauses Act

1847 shall not exceed two shillings and threepence per thousand gallons. A.D. 1930.

43. The Corporation shall lay down (so far as the same are not already laid down) pipes to convenient spots upon the quays and docks and provide a hose therefrom for the purpose of enabling masters of vessels lying alongside of any pier to obtain water from the Corporation and the Corporation may charge such masters of vessels for any water so supplied a sum not exceeding one shilling and sixpence per ton and the Corporation may supply water to any vessel afloat and not lying alongside of any pier at such rate per ton as may be agreed on between the Corporation and the master of such vessel.

Water to be supplied to vessels.

44.—(1) Where a supply of water to a farmhouse is used for farming purposes the Corporation may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Corporation to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate.

As to supply to farmhouses.

(2) If the owner or occupier of any farm premises within the water limits desires a supply of water for farming purposes and lays the necessary communication pipe from such premises to a main of the Corporation the Corporation shall supply to such owner or occupier by meter such quantity of water as the owner or occupier may from time to time reasonably require for such farming purposes. Provided that the Corporation shall not be required to supply water under this section at a pressure greater than that to be afforded by gravitation from the reservoir from which such water is supplied nor if and so long as such supply would interfere with the supply of water for domestic purposes within the water limits.

45. The price to be charged by the Corporation for a supply of water by meter shall not exceed two shillings and sixpence per thousand gallons until the twenty-fifth day of March nineteen hundred and thirty-one after which date such price shall not exceed three shillings per thousand gallons. Provided that except as by this Act otherwise expressly provided the Corporation shall be entitled to charge a minimum sum of fifteen shillings in any quarter of the year for water supplied by meter.

Price of water supplied by meter.

A.D. 1930:

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As to
rates and
charges
outside
borough.

46. The rates and charges in respect of water supplied by the Corporation in the borough of Penryn and the parishes of Budock Rural Mylor and St. Gluvias shall not exceed the rates and charges for the time being demanded by the Corporation for a corresponding supply within the borough.

Revision
of rates.

47.—(1) At any time during the period of three months before and three months after the coming into force within the water limits of any and every new valuation list under the Rating and Valuation Act 1925 the Corporation or any local authority (other than the Corporation) having jurisdiction within the water limits may apply to the Minister for a revision of the rates and charges for the supply of water authorised by this Act or for the time being in force under any order of the Minister made in pursuance of this section and if and whenever any such application is so made and the Minister is satisfied that the cost of labour and materials or other circumstance affecting the undertaking has substantially altered he may by order vary either by way of increase or decrease such rates and charges or any of them.

(2) The making of any new valuation list under Part II of the said Act of 1925 shall be deemed to be a circumstance affecting the undertaking of the Corporation within the meaning and for the purposes of this section.

Water rate
&c. may be
collected
with
general rate.

48.—(1) Any water rate payable to the Corporation may be collected together with the general rate and the same books may be used for the said rates.

(2) The general rate and the demand note and any other necessary documents to be used for the purposes of or in connection with the general rate or water rates shall be in such form as the Minister may from time to time prescribe.

(3) The Corporation may demand water rates and charges both within and beyond the borough by half-yearly instalments in advance on the first day of April and the first day of October in each year but so that the same shall not be recoverable until the expiration of two months from the said first day of April and first day of October respectively.

(4) (a) The Corporation may from time to time if they think fit make an allowance by way of discount

not exceeding five per centum on the amount due in respect of any water rate or charge or any instalment thereof from every person who pays the same within such time after demand of the rate or any instalment thereof as the case may be as the Corporation may prescribe. A.D. 1930.

(b) Provided that the same rate of discount shall be allowed in similar circumstances to every person from whom such water rate or charge or any instalment thereof shall be demanded.

(c) If and so long as the Corporation allow such discount notice of the effect of this enactment shall be endorsed on every demand note for water rates and charges.

49.—(1) The Corporation may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as “water fittings”) to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination. Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Corporation are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) The Corporation shall on or before the date upon which notice of any such byelaws is first given in any local newspaper in pursuance of section 184 of the Public Health Act 1875 send a copy of the byelaws to the local authority for every district in which the byelaws are intended to be in force.

(4) In case of failure of any person to observe such byelaws as are for the time being in force the Corporation may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement

[Ch. clxxi.] *Falmouth Corporation* [20 & 21 GEO. 5.]
Water Act, 1930.

A.D. 1930. or alteration shall be recoverable by the Corporation as the water rates in respect of the premises are recoverable.

(5) In so far as any byelaws made by the Corporation prescribe the size nature materials workmanship and strength of water fittings the same shall not apply to water fittings used on any premises belonging to the Great Western Railway Company (other than premises to which the Corporation are bound under the Waterworks Clauses Act 1847 to afford a supply of water for domestic use) so long as such fittings do not cause waste undue consumption misuse or contamination of water which is supplied by the Corporation.

Extension
of power
to inspect
premises.

50. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 the waterworks engineer of the Corporation or any person duly authorised by him in writing may at all reasonable times between the hours of seven o'clock and nine o'clock in the morning and also between the hour of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Corporation in order to examine if there be any waste or misuse of such water and if any person hinder any such engineer or authorised person from entering either under the said section 57 or under this section or making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds Provided that no person shall for the same offence have the water supplied to him turned off in pursuance of the said section 57 and also be liable to a penalty under this section.

Mainten-
ance of
common
pipe.

51. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Corporation in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer of the Corporation.

Separate
communi-
cation pipes
may be
required.

52.—(1) The Corporation shall not be bound to supply more than one house or part of a house occupied as a separate tenement by means of the same communication pipe and they may if they think fit require

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that a separate pipe be laid from the main pipe into each house or part of a house occupied as a separate tenement supplied by them with water : A.D. 1930.
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Provided that this section shall not apply in the case of a communication pipe which at the passing of this Act is used for the supply of water to more than one house or part of a house unless and until such communication pipe becomes defective or requires renewal in which event the Corporation may require that a separate pipe be laid from the main pipe into each house or part of a house occupied as a separate tenement formerly supplied with water by means of that communication pipe.

(2) If the owner of any house or part of a house occupied as a separate tenement and supplied with water by the Corporation when so required in pursuance of the preceding subsection fails within a period of three months after the receipt of such requirement to provide a separate pipe from the main into such house or part of a house the Corporation may themselves do the work necessary in that behalf and may recover the cost incurred by them in so doing from the owner.

53.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes. As to communication pipes.

(2) The Corporation may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the water limits execute such works on behalf of such owner or occupier and any expenses incurred by the Corporation shall be repaid by the owner or occupier with whom the agreement is made.

54. If in the opinion of the Corporation any waste of water or injury or risk of injury to person or property is caused or likely to be caused by reason of any injury to or defect in any communication pipe which the Corporation are not under obligation to maintain it shall Power to Corporation to repair communication pipes.

A.D. 1930. — be lawful for the Corporation to execute such repairs to the communication pipe as they may think necessary or expedient in the circumstances without being requested so to do and if any injury to or defect in the communication pipe shall have been found the expense incurred by the Corporation for the purposes of ascertaining the injury or defect and executing the repairs (including the expense of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Corporation in like manner as the water rates in respect of the premises are recoverable. Provided that (except in emergency) the Corporation shall not under the powers of this section enter into any house or private premises unless they shall have given to the occupier of such house or premises (and if the water rates in respect of the house or premises are payable by the owner thereof to such owner) not less than twenty-four hours' previous notice of their intention so to enter.

Corporation
to connect
communi-
cation
pipes with
mains.

55. Notwithstanding anything in any Act relating to the Corporation the Corporation shall have the exclusive right of executing any works on any of the water mains of the Corporation for connecting any communication or service pipe therewith and the Corporation shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the Corporation execute on any such main any work which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses incurred by the Corporation in so doing shall be repaid by the owner or occupier so requesting.

Power to
sell meters.

56. The Corporation may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

Injuring
meters &c.

57.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly

registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the Corporation) be liable to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained. A.D. 1930.
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(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Corporation the Corporation may enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter or instrument of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Corporation by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be prima facie evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

58.—(1) Where water is supplied by measure the register of the meter or other instrument for measuring water shall be prima facie evidence of the quantity of water consumed and in respect of which any water rate is charged and sought to be recovered by the Corporation. As to register of meters.

(2) Provided that if the Corporation and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties

A.D. 1930. — any costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

(3) If any meter used by a consumer of water be proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and in the case of a surcharge shall be recoverable in the like manner as rates for water are recoverable by the Corporation.

Notice to
Corpora-
tion of
connecting
or discon-
necting
meters.

59. Before any person connects or disconnects any meter by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Corporation of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Corporation and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Notice of
discon-
tinuance.

60. A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Corporation.

Power to
supply
water
fittings.

61.—(1) The Corporation may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter (but shall not manufacture) any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and execute all work necessary or proper in that behalf and the reasonable charges of the Corporation in providing such materials and executing such work shall be paid by the person requiring the same.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in

execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Corporation as the actual owners thereof. A.D. 1930.
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(3) Subject to the proviso to subsection (2) of this section all fittings let by the Corporation on hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any premises at all times continue to be the property of and removable by the Corporation Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(4) Provided as follows :—

- (a) The Corporation shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of money so borrowed);
- (b) When a demand note delivered by the Corporation to a consumer includes a sum charged by the Corporation in respect of providing such fittings or the fixing repairing or removal thereof such sum shall be clearly stated in such demand note;
- (c) The total sums expended and received by the Corporation in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the water undertaking for such year.

62. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being Penalty for interfering with valves &c.

[Ch. clxxi.] *Falmouth Corporation* [20 & 21 GEO. 5.]
Water Act, 1930.

A.D. 1930. — entitled to a supply or the continuance of a supply of water by the Corporation who shall without the authority of the Corporation turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Corporation and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 (Penalty for destroying valves drawing off water &c.) of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly.

Penalty for closing valves and apparatus.

63. Every person who shall wilfully (without the consent of the Corporation) or negligently close or shut off any valve cock or other work or apparatus belonging to the Corporation whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Corporation) be liable on conviction to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing the valve fixed on his communication pipe.

Contracts for supplying water in bulk outside water limits.

64. The Corporation may enter into and carry into effect agreements with any local authority company or person for the supply of water beyond the water limits to such authority company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon :

Provided that—

- (1) Such supply shall not be given except with the consent of any local authority company or person supplying water under parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water within the water limits :
- (2) Nothing in this section shall authorise the Corporation to lay any mains or other pipes or to interfere with any street beyond the water limits.

65. The Corporation may enter into and carry into effect agreements with any local authority company or person supplying water under parliamentary authority for the purchase of water in bulk by the Corporation for such price and on such terms and conditions and for such period as may be agreed upon and any water so purchased may be used by the Corporation for the purposes of the water undertaking.

A.D. 1930.
—
Purchase of water in bulk.

PART V.

FINANCIAL AND MISCELLANEOUS.

66.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment of the said sums and the payment of interest thereon they may mortgage or charge the revenues of the Corporation and they shall pay off all moneys so borrowed within the respective periods (which for the purposes of this Act shall respectively be “the prescribed period”) mentioned in the third column of the said table (namely) :—

Power to borrow.

1.	2.	3.
Purpose.	Amount.	Period for repayment.
(a) For defraying the costs and expenses incident to the purchase of the undertaking of the Company and to the transfer of such undertaking to the Corporation (other than the costs of this Act) and for the payment of any sum of a capital nature payable by the Corporation under the scheduled agreement or payable to the Company under the provisions of this Act including the payment of compensation (otherwise than by way of an annual sum) to directors officers and servants of the Company.	The sum requisite.	Forty-five years from the day of transfer.
(b) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

A.D. 1930.

(2) (a) The Corporation may also borrow with the consent of the Minister the sum requisite for the construction of the works authorised by the Act of 1928 and the Act of 1930 and such further moneys as may be necessary for any of the purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister and that period shall be the prescribed period for the purposes of this Act.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

Creation of
stock for
purposes
of Act.

67.—(1) The Corporation may and shall immediately prior to the day of transfer create such an amount of stock of the Corporation (to be called “Falmouth Corporation five per centum stock 1950–1975”) as may be necessary to give effect to the scheduled agreement and the provisions of Part II (Acquisition of water undertaking) of this Act. Such stock shall be entitled to dividend at the rate of five per centum per annum from the day of transfer payable on the first day of July and the first day of January in each year until redemption and the first payment of such dividend shall be made on the first day of July nineteen hundred and thirty-one in respect of the period from the day of transfer until that first day of July. Such stock shall also be redeemable and be redeemed or purchased and extinguished in accordance with the provisions of paragraph 6 of the scheduled agreement.

(2) The stock created by the Corporation under this section shall be held in multiples of one pound and the Corporation shall not be required to register a transfer of any fractional part of one pound of such stock.

(3) The Stock Regulations 1891 and any regulations amending the same shall (subject to the provisions of this Act) apply to the said stock and any provisions of those regulations requiring the order consent or approval of the Minister in relation to the creation of the stock shall have effect as if that order consent or approval had been made or given and the amounts of the contributions from the revenues of the Corporation payable in each year for redemption and extinction or purchase and

extinction of the stock shall be determined by the provisions of paragraph (b) of article 14 (3) of the Stock Regulations 1891 and the rate per centum for the purposes of those provisions is hereby determined to be not exceeding three pounds ten shillings per centum or such other rate as the Minister may from time to time approve. A.D. 1930.

(4) The said stock and all dividends from time to time payable thereon shall be charged on the revenues of the Corporation.

(5) The said stock shall rank *pari passu* with the existing mortgages granted by the Corporation and the Corporation shall not at any time create or issue any mortgage stock annuity or other security ranking either as to principal or interest in priority to such first mentioned stock.

68. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of sections 15 and 16 of that Act. Mode of raising money.

69. Subject to the provisions of the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" the following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say):— Provisions of Public Health Act 1875 as to mortgages to apply.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages).

70. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking Mode of payment off of money borrowed.

A.D. 1930. fund shall be made within twelve months or when the
— moneys are repaid by half-yearly instalments within
six months from the date of borrowing.

Sinking
fund.

71.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act or any other statutory borrowing power (except moneys raised by the issue of stock) such fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which

would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based. A.D. 1930.
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(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Minister that any such increase is necessary the Corporation shall increase the payments to such extent as the Minister may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be more than sufficient to repay within the prescribed period the moneys for

A.D. 1930. — the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent of the Minister discontinue the annual payments to such sinking fund until the Minister shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister may determine.

(12) All moneys which at the commencement of this Act are standing to the credit of any sinking fund in respect of moneys borrowed otherwise than by the issue of stock and not applied in repayment thereof may be transferred to the sinking fund established under this Act and the sums so transferred shall be taken into account in calculating the future payments to be made to the sinking fund under this section.

Sinking
fund for
debenture
stock.

72.—(1) The Corporation shall make provision for the extinction of the five per centum debenture stock of the Company and of any stock (except stock issued under the section of this Act of which the marginal note is "Creation of stock for purposes of Act") mortgage or other security of the Corporation substituted for the same by means of a sinking fund so as to purchase and extinguish or to be in a position to purchase and extinguish the said stock or security within a period of forty-five years from the day of transfer.

(2) The provisions of this Act with reference to sinking funds shall extend and apply with any necessary modifications to the sinking fund to be provided under this section and for the purposes thereof the prescribed period shall be the period of forty-five years from the day of transfer.

A.D. 1930.

(3) The Corporation may at any time apply the whole or any part of the sinking fund to be provided under this section in or towards the purchase of the said debenture stock or any part thereof or in or towards paying off any stock (except as aforesaid) mortgage or other security of the Corporation substituted for such stock. Provided that if such fund be an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(4) (a) At any time before the expiration of the prescribed period the Corporation may borrow at interest such money as they may require for the purchase of the said debenture stock or any part thereof.

(b) The provisions of this Act with reference to the borrowing of money and the repayment thereof shall extend and apply to all money borrowed under this subsection and for the purposes of those provisions the prescribed period shall be the period of forty-five years from the day of transfer.

73.—(1) The Corporation shall have power—

Power to
re-borrow.

(a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be repaid forthwith; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

[Ch. clxxi.] *Falmouth Corporation* [20 & 21 GEO. 5.]
Water Act, 1930.

A.D. 1930.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Application
of section 79
of Public
Health
Act 1925.

74. The provisions of section 79 of the Public Health Act 1925 shall apply in relation to any sums set apart as a sinking fund or a redemption fund for the purpose of paying off moneys borrowed by the Corporation in the exercise of any statutory borrowing power as if all such moneys had been borrowed by the Corporation in exercise of their powers under the Public Health Act 1875.

Use of
moneys
forming
part of
sinking
and other
funds.

75. Notwithstanding anything contained in any previous enactment the Corporation may use for the purpose of any statutory borrowing power exerciseable by them any moneys forming part but not for the time being required for the purposes of any fund accumulated for the redemption of debt or as a reserve renewals depreciation accident or other similar fund (in this section referred to as "the lending fund") subject to the following conditions:—

(1) The moneys so used shall be repaid to the lending fund within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable:

Provided that the Corporation shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding as the case may be as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any

time within the period aforesaid and in either case the repayment shall be made out of the fund rate or revenue aforesaid or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power : A.D. 1930.
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- (2) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and such interest shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power :
- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to re-borrowing of sums raised under the statutory borrowing power shall apply accordingly.

76.—(1) Notwithstanding anything contained in any other Act relating to the Corporation where the Corporation have from time to time any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section. Power to use one form of mortgage for all purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Fourth Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Corporation at any time after the date of the first grant of a mortgage under this section.

A.D. 1930.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods and by the means within and by which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section.

(7) There shall be kept at the office of the town clerk a register of the mortgages granted under this section and within one month after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed.

Every such register shall be open to inspection by any mortgagee or other person entitled to any mortgage granted under this section during office hours at the said office without fee or reward and the town clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate rights and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Fourth Schedule to this Act or to the like effect and shall not contain any recital trust power or proviso whatsoever.

(9) There shall be kept at the office of the town clerk a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall

be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee. A.D. 1930.
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(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate rights and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(11) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

77.—(1) Notwithstanding anything contained in the Public Health Acts Amendment Act 1890 or in any other Act or Order on and after the thirty-first day of March nineteen hundred and thirty-one the Corporation may (if they think fit) establish a fund to be called “the consolidated loans fund” to which shall be paid as and when they are received—

- (a) all moneys borrowed by the Corporation whether by issue of stock or other security together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose;
- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt; and

A.D. 1930.

- (d) a sum or sums equal to the aggregate amount of all dividends and interest payable in each year on stock mortgages or other securities issued in exercise of any statutory borrowing power and remaining outstanding:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

(a) in the redemption of stock or any other securities issued by the Corporation the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation;

(b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation; and

(c) in the payment of dividends and interest on the stock mortgages or other securities issued in the exercise of any statutory borrowing power of the Corporation and remaining outstanding:

And the moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the accumulations arising from the investments thereof shall not except with the consent of the Minister be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

[20 & 21 GEO. 5.] *Falmouth Corporation* [Ch. clxxi.]
Water Act, 1930.

(4) Save as in this section expressly provided all the obligations of the Corporation to the holders of stock or other securities of the Corporation shall continue in force. A.D. 1930.

(5) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

78. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and except securities to which regulations made under section 52 (Issue of stock) of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the town clerk or registrar of stock of the Corporation of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited. Evidence of transfer or transmission of securities.

79. Where more persons than one are registered as joint holders of any mortgage of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation or the treasurer by any other of them. Interest on mortgages held jointly.

80. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had expressed or implied notice of any such trust or of any charge or incumbrance Corporation not to regard trusts.

A.D. 1930. — upon or transfer of such loan or security or any part thereof or interest thereon not entered on their register.

Appoint-
ment of
receiver.

81.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall be not less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Protection
of lender
from
inquiry.

82. A person lending money to the Corporation shall not be bound to inquire as to the observance by the Corporation of any provisions of any Act relating to the Corporation or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Application
of moneys
borrowed.

83. All moneys borrowed under the provisions of this Act shall be applied only to the purposes for which they are authorised to be borrowed and (except in the case of money borrowed for current expenses) to which capital is properly applicable.

Expenses of
execution
of Act.

84. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the general rate fund.

Return to
Minister
with respect
to repay-
ment of
debt.

85.—(1) The town clerk shall if and when he is requested by the Minister so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return

the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court. A.D. 1930.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Any provision of any enactment which was in force in the borough immediately before the passing of this Act and which requires an annual return to be made to the Minister with regard to the repayment of debt is hereby repealed.

86.—(1) All money received by the Corporation on account of the revenue of the water undertaking or of any other undertaking of the Corporation existing at the date of this Act from which revenue is derived shall be carried to and shall form part of the general rate fund and all payments and expenses made and incurred in respect of any such undertakings shall be paid out of that fund. Application of revenue and payment of expenses of undertakings.

(2) The Corporation may (if they think fit) apply money received by them on account of the revenue of any of the undertakings referred to in subsection (1) of this section in the construction renewal extension and improvement of the works and conveniences for the purposes of such undertakings respectively.

A.D. 1930.

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Separate
accounts to
be kept.

87.—(1) The Corporation shall keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings of the Corporation referred to in the last preceding section of this Act (each of which is in this section separately referred to as “the undertaking”) on the one side all receipts in respect of the undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say):—

- (a) The working and establishment expenses and cost of maintenance of the undertaking;
- (b) The interest on Falmouth Corporation five per centum stock 1950–1975 and on moneys borrowed by the Corporation for the purposes of or connected with the undertaking and on the five per centum debenture stock of the Company for the time being outstanding;
- (c) The requisite appropriations instalments or sinking fund payments in respect of the said stock and moneys borrowed for the purposes of the undertaking;
- (d) All other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) The amount (if any) paid to any reserve fund which the Corporation are from time to time authorised to maintain.

(2) The Corporation shall show in their accounts relating to any undertaking or purpose all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

(4) Whenever the separate heading or division of the accounts in relation to the water undertaking shall show in any year that the revenue exceeds the amount

expended or set aside in connection with that undertaking in respect of the several purposes mentioned in subsection (1) of this section together with the sum (if any) required to balance the amount by which the amount expended or set aside in connection with that undertaking in any previous year or years has exceeded the revenue of such year or years then the charges of the Corporation for the supply of water to be made and charged in the next succeeding year shall be reduced in such manner as the Corporation think fit to an extent as nearly as may be equivalent to the amount of such excess :

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Provided that if owing to an increase in the estimated amount to be expended or set aside in the said next succeeding year or to a reduction in the estimated revenue of that year the amount of such excess or any part thereof will be required in order that the revenue may not be less than the amount to be expended or set aside the reduction in charges may be such only as will reduce the revenue by the amount of the balance of such excess.

88.—(1) The Corporation may (if they think fit) provide a reserve fund in respect of the water undertaking by setting aside such an amount as they may from time to time think reasonable and investing the same subject to the provisions of the section of this Act of which the marginal note is “ Use of moneys forming part of sinking and other funds ” in statutory securities until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one-tenth of the aggregate capital expenditure for the time being upon the undertaking.

Reserve
fund for
water un-
dertaking.

(2) Any reserve fund formed under this section shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the water undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking or for payment of the cost of renewing improving or extending any part of the works forming part thereof or otherwise for the benefit of that undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

A.D. 1930.

(3) Resort may be had to the said reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(4) The income of any such reserve fund shall be treated as part of the revenue of the water undertaking.

Authenti-
cation and
service of
notices &c.

89.—(1) Where any notice or demand under this Act or under any local Act or Order or any byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 (Service of notices) of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the Company at their registered office or at their principal office or place of business.

Evidence
of appoint-
ments
authority
&c.

90. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or any committee of the council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be prima facie evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

General
provisions
as to
byelaws.

91. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to

byelaws authorised to be made by the Corporation under A.D. 1930.
the powers of this Act. —

92. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted. Damages and charges to be settled by court.

93. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

94. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the borough any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him. Several sums in one summons.

95. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the borough. Informations by whom to be laid.

96. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

97. All penalties recovered on the prosecution of the Corporation or any officer of the Corporation on their behalf under this Act or under any byelaw thereunder shall be paid to the treasurer and be carried by Penalties to be paid over to treasurer.

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Water Act, 1930.

A.D. 1930. him to the credit of the general rate fund or to such other fund as the Corporation shall direct.

Saving for
indict-
ments &c.

98. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Application
of section
265 of Pub-
lic Health
Act 1875.

99. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of any local enactment as if the same were re-enacted therein.

Judges not
disqualified.

100. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Inquiries
by Minister.

101.—(1) The Minister may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Minister shall for the purposes of any such inquiry have all such powers as they may have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

(2) The Corporation shall pay to the Minister any expenses incurred by the Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Minister not exceeding five guineas a day for the services of such inspector.

Costs of
Act.

102. The costs charges and expenses preliminary to and of and incidental to preparing applying for obtaining and passing this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and general rate or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1930.

FIRST SCHEDULE.

THE SCHEDULED AGREEMENT.

AN AGREEMENT made the nineteenth day of May one thousand nine hundred and thirty between THE FALMOUTH WATERWORKS COMPANY (hereinafter called "the Company") of the one part and THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF FALMOUTH (hereinafter called "the Corporation") of the other part.

Ten
Shillings.

Whereby it is agreed as follows :—

1. The Company shall sell and the Corporation shall purchase as a going concern the whole of the undertaking of the Company with all and singular their real and personal property of whatever tenure goodwill assets and effects of whatever nature or kind The said undertaking of the Company shall include—

- (a) all the lands buildings waterworks machinery mains pipes plant and apparatus contracts plans specifications engineering reports books accounts papers and other documents stores and other property of the Company on the day of transfer ;
- (b) all bank balances and cash and other balances (including consumers' deposits) in the hands of the Company or in the hands of their bankers agents or servants on the day of transfer and securities for money except so much of such balances cash and securities as may be necessary for enabling the Company to pay the dividends which they are entitled to pay under clause 7 of this agreement ;
- (c) All rates rents book debts and other sums of money which on the day of transfer are due or payable to or have accrued due to the Company ;
- (d) All rights powers and privileges vested in or had and enjoyed by the Company at the day of transfer ;
- (e) All debts and liabilities of the Company as existing on the day of transfer ;

A.D. 1930. but shall not include the directors' minute books and other books and papers relating exclusively to the stockholders and members of the Company.

2. The day of transfer shall be the first day of January one thousand nine hundred and thirty-one and the Company shall (save as hereinafter mentioned) carry on their business as heretofore until the day of transfer at their own risk and for their own profit.

3. The undertaking of the Company shall pass to the Corporation on the day of transfer subject to all the liabilities of the Company in relation thereto subsisting at the day of transfer and in particular the Corporation shall take over as a charge upon the revenues of the Corporation the twenty thousand pounds five per centum redeemable debenture stock issued by the Company in one thousand nine hundred and twenty-nine and any interest accrued due thereon up to the day of transfer and shall indemnify the Company against all liabilities thereon as from the day of transfer. The said debenture stock shall be redeemable by the Corporation by purchase from time to time in the open market or by agreement with the holder of any of such debenture stock and shall be redeemed by the Corporation at the expiration of twenty years from the date of issue of the stock at the rate of one hundred and five pounds for every one hundred pounds of stock.

4. The Company shall on the day of transfer deliver to the Corporation free of charge all deeds agreements counsel's opinions blue prints photographs descriptions of works vouchers letters and other records of the business and proceedings of the Company and originals or copies of all other documents drafts or writings belonging to the Company whether in the possession of the Company or of their solicitors agents resident engineer or consulting engineers.

5. In consideration of the transfer of the Company's undertaking the Corporation shall on the day of transfer issue in the respective names of the holders of the stocks of the Company whose names appear on the Company's books on the first day of November one thousand nine hundred and thirty and whose names (together with all other necessary particulars) are on that day given to the Corporation by the Company the following amounts of Falmouth Corporation five per centum stock to be issued in exchange for the following amounts of the said stocks respectively that is to say :—

- (a) two hundred and ten pounds of Corporation stock for each one hundred pounds of the Company's ten per centum ordinary stock;
- (b) one hundred and twenty pounds of Corporation stock for each one hundred pounds of the Company's six per centum ordinary stock;

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(c) one hundred and two pounds ten shillings of Corporation stock for each one hundred pounds of the Company's five per centum preference stock; A.D. 1930.

(d) eighty-five pounds of Corporation stock for each one hundred pounds of the Company's four per centum debenture stock;

and so in proportion (so far as may be necessary) for amounts of less than one hundred pounds of such Company's stocks respectively. Provided that in every case where under this agreement a holder of ordinary preference or four per centum debenture stock of the Company would be entitled to a fractional part of one pound of Corporation stock the Corporation shall (in lieu of issuing such fractional part in stock) satisfy the same by the payment of a sum of money equal to the nominal value of such fractional part.

The certificates of Corporation stock when issued under the foregoing provisions of this clause and any sums of money payable thereunder shall be delivered or paid (as the case may be) by the Corporation to the Company for distribution by them and the receipt in writing of any three directors of the Company or of the liquidator referred to in clause 17 hereof for any such certificates or sums of money shall effectually discharge the Corporation from the obligations of this clause in respect of the certificates or sums of money the receipt of which is so acknowledged.

6. The Corporation stock referred to in the last preceding clause hereof shall not be redeemable by the Corporation (except by purchase in the open market or by agreement with the holder thereof) before the expiration of twenty years from the date of the issue thereof. After the expiration of the said period of twenty years the said Corporation stock shall (on three months' notice in writing from the Corporation to the holder thereof) be redeemable in cash at par at the option of the Corporation and the Corporation shall redeem the same at par within forty-five years from the said date of the issue. Provided that the Corporation shall be entitled to purchase the said stock at any time in the open market or by agreement with the holder thereof from any redemption fund established for that purpose.

7. For the year ending the thirty-first December one thousand nine hundred and thirty the Company shall be entitled to pay on their ordinary stock and preference stock the maximum dividends prescribed by section 41 of the Falmouth Water Act 1928 in so far as such dividends have not been paid before the date hereof but the Company shall not pay anything in respect of arrears of dividends for any period prior to the first January one thousand nine hundred and thirty.

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—

8. Between the twenty-eighth February one thousand nine hundred and thirty and the day of transfer the Company—

- (a) shall maintain the assets of the Company and carry on the undertaking in the ordinary course of business and shall keep and deliver up the same in fair working order as a going concern but shall not make any unnecessary or unusual outlay or incur any unnecessary or unusual liability or (without the consent in writing of the Corporation) raise any further share or loan capital except such amount as may be necessary to defray the cost of capital commitments entered into before the date hereof in so far as such cost is required to be liquidated by payments due to be made before the day of transfer;
- (b) shall not enter into any new agreement or contract of service with any officer or servant without the written consent of the Corporation;
- (c) shall permit two members of the Corporation to be appointed by the Corporation to attend the meetings of the Company's board of directors to enable them to gain experience;
- (d) shall not except with the consent in writing of the Corporation vary any of the rates rents or charges which were in operation on the first April one thousand nine hundred and thirty.

9. No further capital expenditure shall be incurred by the Company after the date hereof without the consent in writing of the Corporation except such amount as may be necessary to defray the reasonable cost of (a) ordinary and proper extensions of mains to meet new demands (b) capital commitments entered into by the Company before the date hereof (c) the promotion by the Company of their Bill in Parliament in the session 1929–30 and negotiations in connection with the Bill promoted by the Corporation in that session and (d) carrying out works authorised by the said Bill up to the day of transfer but no contract with regard to such works shall be entered into and no such works shall be carried out without the written consent of the Corporation.

10. The Corporation shall on the day of transfer pay to William Dickinson William Henry Blaber Bernard William Bryan Herbert Henry Cox and Courtenay Crucroft Spurrell Fooks the directors of the Company at the date hereof the sum of two thousand two hundred and five pounds in cash as compensation for loss of office. The said sum shall be divisible among the said directors or such of them as may survive until the day of transfer as they may think fit.

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11. The Corporation shall on the day of transfer pay to Messrs. Deloitte Plender Griffiths & Company the auditors of the Company the sum of one hundred and seventy-three pounds five shillings in cash or at the option of the Corporation in Falmouth Corporation five per centum stock as compensation for loss of office. A.D. 1930.

12. If the Corporation so require the Company's engineer Mr. Gerald Cox shall enter their service at the day of transfer for a minimum period of three years and the Corporation shall pay him a salary at the rate of seven hundred pounds per annum for the first three years of such service eight hundred pounds for the fourth year eight hundred and fifty pounds for the fifth year nine hundred pounds for the sixth year nine hundred and fifty pounds for the seventh year and one thousand pounds for the eighth and each succeeding year. If Mr. Cox does not enter the service of the Corporation or if he does enter their service and at any time after the day of transfer the Corporation dispense with his services or he retires owing to ill-health or retires voluntarily after the expiration of the said period of three years the Corporation shall pay to him an annuity for his life at the rate of five hundred pounds per annum or at his option a capital sum in lieu of such an annuity equivalent to ten years' purchase of his salary at the day of transfer or at the date of his retirement as the case may be. Provided that in the event of Mr. Cox retiring voluntarily before he has completed ten years' service with the Corporation he shall not be entitled to exercise the said option. The said annuity shall be payable from the day of transfer or the date of retirement as the case may be and shall be paid quarterly in arrear on the usual quarter days.

13. The Corporation shall as from the day of transfer pay the following annuities or pensions during the lives of the respective recipients such annuities or pensions (unless otherwise agreed between the Corporation and the respective recipients) to be paid quarterly in arrear on the usual quarter days to John Montague Hamilton and Alfred Cox and weekly in arrear to John Williams and John Lane :—

Name of annuitant or pensioner.	Amount of annuity or pension.
John Montague Hamilton (secretary of the Company)	One hundred and fifty pounds per annum.
Alfred Cox (engineer) -	Two hundred pounds per annum.
John Williams (late attendant at waterworks)	One pound ten shillings per week.
John Lane (engine driver) -	One pound ten shillings per week.

The Corporation shall also permit the said John Williams during his life to occupy and use his present house at the waterworks rent free.

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—

14. The Corporation shall take over every officer and servant of the Company specified in the schedule hereto who on the day of transfer is in the employment of the Company (except any such officer or servant who not less than one month before the day of transfer signifies in writing to the Corporation that he is unwilling to serve under them) on conditions not less favourable to them than their terms of service on the twenty-eighth February one thousand nine hundred and thirty. No officer or servant in the employment of the Company shall have his salary or wages increased (except in the case of automatic increases forming part of the terms of service) between the date hereof and the day of transfer except with the written consent of the Corporation.

15. If the Corporation do not employ Mr. Cornwall-Walker as consulting engineer for a period of five years on similar terms to those upon which he was serving the Company in that capacity on the twenty-eighth February one thousand nine hundred and thirty they shall pay to him in cash on the day of transfer the sum of two hundred and fifty pounds.

16. The Company shall not without the written consent of the Corporation withdraw the Bill which they are promoting in the present session of Parliament. If powers for the construction of new works are conferred upon the Company by the said Bill and the Corporation take over and exercise such powers the Corporation shall retain and employ Dr. Lapworth and Mr. Cornwall-Walker as engineers in the carrying out of such new works and shall pay them reasonable remuneration for their services. Provided that if Mr. Cornwall-Walker is so retained and employed he shall not be entitled to any compensation under clause 15 hereof.

17. The present secretary of the Company Mr. John Montague Hamilton shall act as liquidator in the winding up of the Company and shall be paid a fee of one hundred pounds (inclusive of expenses incurred by him other than expenses connected with any litigation) for his services in that capacity. The Corporation shall pay the costs of such winding up so far as the same is not effected by the Bill referred to in clause 18 hereof.

18. The Corporation shall promote and use its best endeavours to procure the passing in the present session of Parliament of a Bill with such clauses as may be necessary to carry this agreement into effect and the Company shall aid and assist the Corporation in obtaining the said intended Act and in furtherance of this object shall supply to the Corporation free of charge such information particulars and evidence in the possession of the Company or of any of their officers or servants as the Corporation may reasonably require and the Company by themselves their officers and servants shall support the Bill by evidence or otherwise.

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Water Act, 1930.

at the request of the Corporation The Corporation shall pay A.D. 1930.
any costs of opposing the said Bill which the Company may
reasonably incur for protecting their interests. —

19. This agreement is subject to the approval of Parliament and to such alterations as may be made by Parliament therein and shall be scheduled to the Bill referred to in clause 18 hereof but in the event of Parliament making any material alteration in this agreement it shall be in the option of either party to withdraw from the same.

20. If any question difference or dispute shall arise with reference to this agreement or the construction thereof or as to anything herein contained or as to anything not fully provided for or as to the rights liabilities or duties of either party hereunder the same shall be referred to a single arbitrator to be appointed failing agreement by the President of the Law Society and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to such reference and arbitration and to this agreement as if it were a submission to arbitration under that Act.

In witness whereof the Company have hereunto affixed their common seal and the Corporation have hereunto affixed their corporate seal the day and year first above written.

SCHEDULE OF EMPLOYEES (SALARIES AND WAGES).

Payable quarterly.					Per annum.		
					£	s.	d.
Richard Kent Stephens collector	-	-	-	-	364	0	0
Fritz Lewis general superintendent	-	-	-	-	364	0	0
Payable weekly.					Per week.		
					£	s.	d.
Dorothy Mary Opie clerk	-	-	-	-	3	12	2
Hilda Muriel Walton clerk	-	-	-	-	2	2	0
Robert Arthur Clook inspector	-	-	-	-	3	12	9
Harry Henry Shreeves inspector	-	-	-	-	2	17	9
David Thomas Anthony driver power station	-	-	-	-	4	5	3
John Carter driver power station	-	-	-	-	3	10	3
Richard Charles Gilbert caulker	-	-	-	-	3	12	4
Thomas John Gilbert caulker	-	-	-	-	2	5	3
Robert Francis Newman labourer	-	-	-	-	2	5	3
Kathleen Lilian Griffiths office cleaner	-	-	-	-	0	17	6

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Payable quarterly.

Per quarter.

	£ s. d.
William Henry Lawrence turncock and meter fitter -	8 9 0

Payable weekly.

Per week.

	£ s. d.
William John Wilce engine driver on tank vessel -	3 5 3

The seal of the Falmouth Waterworks
 Company was affixed hereto in the
 presence of

L.S.

W. DICKINSON

COURTENAY C. S. FOOKS } Directors.

J. M. HAMILTON Secretary.

The corporate seal of the mayor alder-
 men and burgesses of the borough of
 Falmouth was hereunto affixed in the
 presence of

L.S.

GEORGE BUTLER Mayor.

E. P. SKINNER Town Clerk.

SECOND SCHEDULE.

FORM OF DEED.

Pursuant and subject to the provisions of the Falmouth Corporation Water Act 1930 and the agreement scheduled thereto and for the consideration mentioned in the said agreement the Falmouth Waterworks Company hereby grant convey and assign to the mayor aldermen and burgesses of the borough of Falmouth the undertaking property and assets of the said Company to hold the same unto the said mayor aldermen and burgesses their successors and assigns and the said mayor aldermen and burgesses do hereby accept the same accordingly.

In witness whereof the parties hereto have hereunto affixed their respective common seals the * day of
 nineteen hundred and

THIRD SCHEDULE.

A.D. 1930.

PROVISIONS AS TO WINDING UP AFFAIRS AND
DISSOLUTION OF COMPANY.

(1) From and after the day of transfer the Company shall continue to exist only for the purpose of receiving and recovering the Falmouth Corporation five per centum stock 1950-1975 or sums of money to which they or the holders of ordinary preference or four per centum debenture stock of the Company become entitled under the foregoing Act or the scheduled agreement and of distributing such stock or money and any dividends or other moneys to be distributed by them and for winding up the affairs of the Company and carrying into effect the purposes of the foregoing Act so far as they relate to the Company.

(2) The directors of the Company who are in office at the day of transfer and the survivors or survivor of them shall continue without re-election to hold the office of directors of the Company and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the provisions of this schedule relating to the Company.

(3) Forthwith after the day of transfer the directors of the Company shall proceed to wind up the affairs of the Company and shall distribute and pay the stock and money to and among the several persons who on the day of transfer are the registered holders of ordinary preference and four per centum debenture stock of the Company or their respective executors administrators and assigns in accordance with the scheduled agreement and this schedule.

(4) The directors of the Company shall as soon as practicable after the day of transfer call in the certificates of ordinary preference and four per centum debenture stock and deliver free of charge in exchange for those certificates to the respective holders thereof the certificates of Falmouth Corporation five per centum stock 1950-1975 delivered to them by the Corporation under the provisions of the foregoing Act and the scheduled agreement together with any sum or sums of money payable to such respective holders under the said agreement but no such holder shall be entitled to a new certificate or to any dividend due in respect of the stock to which such certificate relates or to any such sum of money until he shall have delivered up to the said directors to be cancelled the existing certificate for which such new certificate and any such sum of money is to be substituted or shall have proved to the reasonable satisfaction of the said directors

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A.D. 1930. — and the Corporation the loss or destruction thereof and shall have given such guarantee or indemnity in respect thereof as the Corporation may require.

(5) When the directors of the Company are for six months after the day of transfer unable after diligent inquiry to ascertain the person to whom any Falmouth Corporation five per centum stock 1950-1975 or any sum of money ought to be issued or paid or who can give an effectual receipt for the same they may deposit or pay such stock or money into or with the High Court under any Act for the time being in force for the relief of trustees and every such deposit or payment shall effectually discharge the Company and the directors thereof from all further liability with respect to such stock or money.

(6) If any money or stock is payable or issuable to any holder of stock in the capital of the Company being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company and the directors for the same.

(7) The Company shall on publication in a local newspaper circulating in the borough of Falmouth of a notice signed by two or more directors of the Company and certifying that all the provisions of this schedule have been complied with be dissolved.

FOURTH SCHEDULE.

FORM OF MORTGAGE.

BOROUGH OF FALMOUTH.

By virtue of the Falmouth Corporation Water Act 1930 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Falmouth (hereinafter referred to as "the Corporation") in consideration of the sum of _____ pounds (hereinafter referred to as "the principal sum") paid to the treasurer of the borough by

(hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the principal sum doth or shall bear to the whole sum which is or shall be charged on the

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said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of _____ per centum per annum from the _____ day of _____ nineteen hundred _____ and _____ until payment of the principal sum such interest to be paid half-yearly on the _____ day of _____ and the _____ day of _____ in each year And it is hereby agreed that the principal sum shall be repaid at the town hall in the said borough [(subject as hereinafter provided) on the _____ day of _____ nineteen hundred and _____ or (if not repaid on that date) at any time thereafter on the expiration of three calendar months' notice in writing by the Corporation to the mortgagee or by the mortgagee to the Corporation] [by _____]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon between the Corporation and the mortgagee and mentioned in an endorsement to be made hereon under the hand of the town clerk for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed this _____ day of _____ nineteen hundred and _____

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named _____ consenting the within-mentioned time for repayment of the within-mentioned principal sum of _____ is hereby extended to the _____ day of _____ nineteen hundred and _____ [and the interest to be paid thereon on and from the _____ day of _____ nineteen hundred and _____ is hereby declared to be at the rate of _____ per centum per annum].

Dated this _____ day of _____ nineteen hundred and _____

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FORM OF TRANSFER OF MORTGAGE.

I [the within-named] of
in consideration of the sum of
pounds paid to me by of
(hereinafter referred to as "the transferee") do
hereby transfer to the transferee [his] executors administrators
and assigns [the within-written security] [the mortgage number
of the revenues
of the mayor aldermen and burgesses of the borough of Falmouth
bearing date the day of]
and all my right and interest under the same subject to the
several conditions on which I hold the same at the time of the
execution hereof and I the transferee for myself my executors
administrators and assigns do hereby agree to take the said
mortgage security subject to the same conditions.

Dated this day of
nineteen hundred and

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or through any Bookseller.